PERFORMANCE WORK STATEMENT (PWS)
FOR
Cranes/Forklifts with Operator Services

1.0 General:

1.1 Scope: The contractor shall provide all personnel, equipment, tools, materials, supervision, and quality control necessary, except as specified in Paragraph 3.0 as Government Furnished, to perform Crane and Forklift Rental with Operator Services, as defined in this PWS.

1.1.1 Objectives: To provide Crane and Forklift Rental with Operator Services to the Alabama National Guard in support of load and unload containers and equipment that range between 3,000 lbs. to 50,000 lbs.

1.2 Background: Contractor will be required to lift an unknown quantity of empty/loaded containers and inoperable equipment or vehicles from ground onto conveyance equipment and vice versa in support of Alabama National Guard training requirements and projects. Minimum guarantee per call (per CLIN) will be 4 hours. Although Blanket Purchase Agreement (BPA) call may be issued for a longer duration of time than needed, contractor shall invoice for the number of actual hours used (rounded up to the nearest hour).

1.3 Period of Performance (PoP): The Ordering Period for this Blanket Purchase Agreement (BPA) is five (5) years. Specific Periods of Performance are determined at the time of the BPA Call.

1.4 General Information:

1.4.1 Place and Performance of Services: To be determined at the time of BPA Call

1.4.1.1 Reserved

1.4.1.2 Unscheduled gate closures by the Security Police may occur at any time causing all personnel to enter or exit a closed installation to experience a delay. This cannot be predicted or prevented. Contractors are not compensated for unexpected closures or delays. Vehicles operated by contractor personnel are subject to search pursuant to applicable regulations. Any moving violation of any applicable motor vehicle regulation may result in the termination of the contractor employee's installation driving privileges.

1.4.1.3 The contractor's employees shall become familiar with and obey the regulations of the installation/local/state/federal, including fire, traffic, safety and security regulations while on the installation. Contractor employees should only enter restricted areas when required to do so and only upon prior approval. All contractor employees shall carry proper identification with them at all times and shall be subject to such checks as may be deemed necessary. The contractor shall ensure compliance with all regulations and orders for the installation, which may affect performance. The

Government reserves the right to direct the removal of an employee from Government property or revoke access to Government systems for misconduct, security reasons, or any overt evidence of communicable disease. Removal of contractor employees for reasons stated above does not relieve the Contractor from responsibility for total performance of this contract.

1.4.2 Recognized Holidays: The following are recognized United States (US) holidays. The contractor shall not perform services on these days:

1.4.2.1 New Year's Day: January 1st

1.4.2.2 Martin Luther King, Jr.'s Birthday

1.4.2.3 President's Day

1.4.2.4 Memorial Day

1.4.2.5 Juneteenth National Independence Day: June 19th

1.4.2.6 Independence Day: July 4th

1.4.2.7 Labor Day

1.4.2.8 Columbus Day

1.4.2.9 Veteran's Day: November 11th

1.4.2.10 Thanksgiving Day

1.4.2.11 Christmas Day: December 25th

1.4.3 Quality Control (QC): Reserved

1.4.3 Reserved

1.4.4 Quality Assurance (QA): Contractor is responsible for the quality control of the contract work. The Government reserves the right to inspect and test all items called for by the contract.

1.4.5 Installation Access and Security Requirements. The contractor shall comply with all applicable installation/facility access and local security policies and procedures, which may be obtained from the COR or unit representative. The contractor and all associated subcontractor employees shall provide all information required for background checks to meet installation access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services, or Security Office. The contractor shall ensure compliance with all personal identity verification requirements as directed by Department of Defense (DoD), Headquarters Department of Army (HQDA) and/or local policy. Should the Force Protection Condition (FPCON)

change, the Government may require changes in contractor security matters or processes.

1.4.5.1 Reserved

1.4.5.2 For contractors that do not require a CAC, but require access to a DoD facility or installation: Contractor and all associated sub-contractors employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification (NCIC-III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05/AR 190-13), and applicable installation, facility and area commander installation/facility access, and local security policies and procedures (provided by a government representative).

1.4.5.3 Reserved

1.4.5.4 Reserved

1.4.5.5 -1.4.5.14 Reserved

1.4.6 Physical Security. The contractor shall safeguard all Government property provided for contractor use. At the close of each work period, Government facilities, equipment and materials shall be secured.

1.4.7 Special Qualifications: The contractor shall ensure all employees possess all required licenses for operating cranes used in the performance of this contract. NOTE: The Government does not provide training for contractors. Contractors must ensure that any personnel performing under a contract are fully trained, licensed, certified, and otherwise qualified to provide services.

1.4.8-10 Reserved

1.4.11. Combating Trafficking in Persons: The United States Government has adopted a zero-tolerance policy regarding trafficking in persons. Contractors and contractor employees shall not engage in severe forms of trafficking in persons during the period of performance of the contract; procure commercial sex acts during the period of performance of the contract; or use forced labor in the performance of the contract. The Contractor shall notify its employees of the United States Government's zero tolerance policy, the actions that will be taken against employees for violations of this policy. The contractor shall take appropriate action, up to and including termination, against employees or subcontractors that violate the US Government policy as described at FAR 22.17.

1.4.12 -1.4.15 Reserved

2.0 Definitions and Acronyms:

2.1 Definitions:

2.1.1 Contractor: A supplier or vendor awarded a contract to provide specific supplies or service to the Government. The term used in this contract refers to the prime.

2.1.2 Defective Service: A service output that does not meet the standard of performance associated with the PWS.

2.1.3 Deliverable: Anything that can be physically delivered and includes non-manufactured things such as meeting minutes or reports.

2.1.4 Key Personnel: Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the people that are listed in the proposal.

2.1.5 Physical Security: Actions that prevent the loss or damage of Government property.

2.1.6 Quality Assurance: The Government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

2.1.7 Reserved

2.1.8 Quality Control: All necessary measures taken by the Contractor to ensure that the quality of an end product or service shall meet contract requirements.

2.1.9 Subcontractor: One that enters into a contract with a prime contractor. The Government does not have privity of contract with the subcontractor.

2.2 Acronyms:

AEI	Army Enterprise Infostructure
AR	Army Regulation
AT/OPSEC	Antiterrorism/Operational Security
BI	Background Investigation
BPA	Blanket Purchase Agreement
CM	Contract Manager
COR	Contracting Officer Representative
DA	Department of the Army
DFARS	Defense Federal Acquisition Regulation Supplement
DoD	Department of Defense
FAR	Federal Acquisition Regulation
GFP/M/E/S	Government Furnished Property/Material/Equipment/Services
HQDA	Headquarters, Department of the Army
HSPD	Homeland Security Presidential Directive
KO	Contracting Officer
NGB	National Guard Bureau

POC	Point of Contact
PWS	Performance Work Statement
QA	Quality Assurance
QC	Quality Control
TE	Technical Exhibit

3.0 Government Furnished Property, Material, Equipment and Services (GFP/M/E/S): The Government will provide the property, material, equipment, and/or services listed below solely for the purpose of performance under this contract:

3.1 Property: None

3.2 Materials: None

3.3 Equipment: None

3.4 Services: None

3.5 Utilities: None

4.0 Contractor Furnished Property, Materials, and Equipment (CFP/M/E):

4.1 General: Except for those items specifically stated to be Government-Furnished in Paragraph 3.0, the contractor shall furnish everything required to perform these services as indicated in Paragraph 1.1.

5.0 Requirements: The contractor shall:

5.1 Provide the quantity of requested crane(s) and forklift(s) as requested, with all necessary operator(s) to lift empty/loaded containers or equipment. The Contractor will be required to lift specified quantity of empty/loaded containers and inoperable equipment or vehicles from ground onto a conveyance equipment or vehicles and vice versa in support of Alabama National Guard requirements at requested servicing locations. The contractor shall always maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS. When hiring personnel, the contractor shall keep in mind that the stability and continuity of the workforce are essential.

5.1.1 Equipment. ALL equipment shall be in good operating and mechanical condition and comply with manufacturers' recommendations. Government POC may inspect required equipment at any time when in use under this contract. Any equipment found deficient shall be removed from service immediately until faulty conditions have been corrected. No such removal will reduce the Contractor's obligation to perform all work required within the time scheduled under this contract.

5.1.1.1 Cranes:

Potential Crane Sizes to be ordered:

Crane & Operator (30 Ton)
Crane & Operator (40 Ton)
Crane & Operator (50 Ton)
Crane & Operator (60 Ton)
Crane & Operator (70 Ton)

5.1.1.2 Forklifts.

Potential Forklift Sizes to be ordered:

Forklift & Operator (10K)
Forklift & Operator (20K)
Forklift & Operator (30K)

5.1.2 Personnel.

5.2.1.1 Crane & Forklift Operator(s): Operators shall, prior to the start of activities, submit to the designated location POC (to be identified in each BPA Call) documentation of current commercial operator certifications, qualifications and designations. Certification for all crane operators shall be achieved by successful completion through a recognized program such as the National Commission for the Certification of Crane Operators (NCCCO) for cranes and must be trained and certified to operate a forklift according to Occupational Safety and Health Administration (OSHA) standards.

5.2 Compliance/Permits

5.2.1 Compliance: All work shall be performed by Qualified and Skilled Personnel with appropriate licenses and/or certification required to operate the appropriate equipment and perform the work required. All work shall be conducted in accordance with all applicable Occupational Safety and Health Administration (OSHA), federal, state, and local safety and health requirements.

5.2.2 Permits: Contractor shall, without additional expense to the Government, be responsible for obtaining any necessary licenses, permits, and letters of certification. Contractor shall comply with any applicable federal, state, county, and municipal laws, codes, and regulations in connection with the performance of the work specified under this contract.

5.3 Accidents:

5.3.1 All accidents and near misses shall be handled IAW the Accident Prevention Plan and investigated by the Contractor. All work-related recordable injuries, illnesses, and property damage accidents (excluding on-the-road vehicle accidents), in which the property damage exceeds $5,000.00, shall be verbally reported to the Government POC within four (4) hours of the incident. Serious accidents shall be immediately reported to the Government POC and documented accordingly.

5.3.2 Accident Prevention Plan shall be submitted to the COR prior to the start of work under the BPA and updated on an as needed basis by the contractor. Revisions to be routed to the COR for review/acceptance.

5.4 Testing/Inspections

5.4.1 Operational Testing:

Operational Testing is required to be completed in accordance with ANSI/ASME, the manufacturer's recommendations. Before every crane operation the operator(s) shall, at a minimum, inspect the crane. Equipment shall not be used until this inspection demonstrates that no corrective action is required.

5.4.2 Load Testing:

A load test is required to be completed when dictated by third party crane inspectors certified to conduct inspections and load testing. Load Testing shall be performed at 100 to 110% of the anticipated load for the specified configuration, not to exceed 100% of the manufacturer's load chart at the configuration of the test.

5.5 Clean Up:

Contractor shall keep the work area, including any storage areas, free from the accumulation of waste materials. Upon completing work in an area, the Contractor shall remove any tools, equipment, and materials that are not the property of the Government. Upon completion of work, the Contractor shall clean up the job site to the satisfaction of the Government. All recyclable construction and demolition materials shall be recycled according to state and local laws.

5.6 Damage to Property

Contractor is responsible for restoring all Government facilities or structures damaged as a result of the contractor's operation. Contractor shall also be responsible for any damage to private property or injury to any person as a result of the contractor's operation.

Contractor shall at all times maintain adequate insurance to cover potential damages. Minimum insurance to be maintained: $100,000.00.

The contractor shall notify the Government POC immediately of damage to Government and private property and injury to any person resulting from the contractor's operation. Contractor shall replace or repair the damage at no expense to the Government as the Contracting Officer directs. If the contractor fails or refuses to make such repairs or replacement, the contractor shall be liable for the cost, which may be deducted from the contract price, and / or additional measures.

5.7 Environmental Protection

Water, air, and land resources shall not be adversely impacted during the course of the work. Contractor shall take necessary steps to ensure all federal, state, and local environmental regulatory requirements are met.

6.0 Applicable Publications: Publications applicable to this PWS are listed below:

Publication (Chapter/Page)	Date of Publication	Mandator y or Advisory	Website
Federal Acquisition Regulation	Most Recent Version	Y	https://www.acquisition.gov/?q=browsefar
Defense Federal Acquisition Regulation Supplement	"	Y	http://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html or https://www.acquisition.gov/dfars
AR 525-13 Antiterrorism	"	Y	http://armypubs.army.mil

6.1 Applicable Forms: Forms applicable to the PWS are listed below:

Form	Date	Website
DD 250 Material Inspection and Receiving Report	Aug 2000	https://www.esd.whs.mil/Directives/forms

TECHNICAL EXHIBIT 1

Performance Requirements Summary (PRS)

This PRS includes performance objectives the Government will use to determine contractor performance and will compare contractor performance to the Acceptable Quality Level (AQL).

Performance Objective	Performance Standard	Acceptable Quality Levels (AQL)	Surveillance Method / By Whom
5.1.1 Equipment	The contractor shall provide equipment in good working order according to MFR guidelines	Zero cranes or forklifts have arrived on site not ready to function as required.	Periodic Inspection / COR or Unit Representative
5.3 Accidents	Accidents reported promptly as needed; accident prevention plan being followed	No accidents failed to get reported in a timely manner; Accident prevention plan being followed 100% of the time	Periodic Inspection / COR or Unit Representative

TECHNICAL EXHIBIT 2

Deliverables Schedule

PWS Reference / Deliverable Title	Frequency	Number of Copies	Medium/Format	Submit To
5.2.1.1 Operator Certifications/Qualifications	Prior to the start of work	1	Electronic Submission or Paper Copy	Government POC
5.3.2 Accident Prevention Plan	Prior to the start of work	1	Electronic Submission	COR